

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                |                            |                                                        |                                               |                                 |
|---------------------------------------------------|----------------------------------------------------------------|----------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Matthew Corwin                   | Team:<br>Squad #10                                             | CCRB Case #:<br>201901058  | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                |                            | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 01/20/2019 7:30 AM    | Location of Incident:<br>Inside of 303 5th Avenue in Manhattan | 18 Mo. SOL<br>3/6/2021     | Precinct:<br>14                                        |                                               |                                 |
| Date/Time CV Reported<br>Tue, 02/05/2019 10:28 AM | CV Reported At:<br>CCRB                                        | How CV Reported:<br>E-mail | Date/Time Received at CCRB<br>Tue, 02/05/2019 10:28 AM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. POM Michael Molfetta | 17587  | 952027 | MTS PCT |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. POM Allen Walker | 28242     | 953548 | MTS PCT  |

| Officer(s)               | Allegation                                                                          | Investigator Recommendation |
|--------------------------|-------------------------------------------------------------------------------------|-----------------------------|
| A . POM Michael Molfetta | Discourtesy: Police Officer Michael Molfetta acted discourteously toward § 87(2)(b) | A . Unsubstantiated         |
| B . POM Michael Molfetta | Discourtesy: Police Officer Michael Molfetta spoke discourteously to § 87(2)(b)     | B . Unsubstantiated         |
| C . POM Michael Molfetta | Abuse: Police Officer Michael Molfetta threatened § 87(2)(b) with the use of force. | C . Unsubstantiated         |

### Case Summary

On February 03, 2019, § 87(2)(b) filed the following complaint with the CCRB over the phone.

At approximately 7:55 a.m. on January 20, 2019, § 87(2)(b) was in the Bread and Butter Deli at 303 5<sup>th</sup> Avenue in Manhattan. A store employee told him he had to leave, but § 87(2)(b) refused. Police Officer Michael Molfetta and Police Officer Allen Walker, of Midtown South, were also in the store and the employee approached them and asked them to get § 87(2)(b) to leave. The officers approached § 87(2)(b) and PO Molfetta told him he had to leave. As § 87(2)(b) was gathering his belongings, PO Molfetta told § 87(2)(b) he was taking too long to leave, before allegedly slapping the table and calling § 87(2)(b) a “stupid motherfucker” (**Allegation A: Discourtesy: Action: Unsubstantiated, Allegation B Discourtesy: Word: Unsubstantiated**).

§ 87(2)(b) then walked out of the store and PO Molfetta and PO Walker followed him outside. When they were outside, § 87(2)(b) repeatedly told PO Molfetta he did not break the law and at some point during this conversation, PO Molfetta allegedly told § 87(2)(b) “I’m going to shoot you” (**Allegation C: Abuse of Authority: Threat of Force: Unsubstantiated**). PO Molfetta and PO Walker then went back into the store and § 87(2)(b) left. He was not arrested or summonsed.

The investigation was unable to obtain video footage of the incident.

### Findings and Recommendations

**Allegation A: Discourtesy: Police Officer Michael Molfetta acted discourteously towards**

§ 87(2)(b)

**Allegation B: Discourtesy: Police Officer Michael Molfetta spoke discourteously to** § 87(2)(b)

**Allegation C: Abuse of Authority: Police Officer Michael Molfetta threatened** § 87(2)(b) **with the use of force.**

§ 87(2)(b) provided two statements to the investigation over the phone on February 06, 2019 (**Board Review 01** and **Board Review 02**). He provided a sworn statement at the CCRB on February 11, 2018 (**Board Review 03**). PO Molfetta provided a statement at the CCRB on April 17, 2019 (**Board Review 04**) and PO Walker also provided a statement at the CCRB on April 17, 2019 (**Board Review 05**).

§ 87(2)(b)'s statements were generally consistent. He said that as he was getting ready to leave, PO Molfetta told § 87(2)(b) that he was taking too much time. § 87(2)(b) explained that he had to get all of his things and he could not do it all at once. PO Molfetta then slapped the table hard and said, “You stupid motherfucker.” Once § 87(2)(b) was outside the establishment, he and PO Molfetta continued to discuss if § 87(2)(b) was in the wrong or not. PO Molfetta put his hand on his gun and unstrapped his holster. § 87(2)(b) said, “So what are you going to do, shoot me?” and PO Molfetta told § 87(2)(b) “I’m going to shoot you.” PO Walker and approximately four other unidentified officers had to restrain PO Molfetta from unholstering his gun.

The former employee that spoke to PO Molfetta and PO Walker, identified by another employee as § 87(2)(b) was not available to the investigation. A second employee, only known as “§ 87(2)(b)

recalled seeing § 87(2)(b) on the incident date, but did not witness § 87(2)(b) interact with PO Molfetta or PO Walker.

PO Molfetta stated that a store employee came up to him and PO Walker and asked them to get § 87(2)(b) to leave the store because he was sleeping and refusing to leave. PO Molfetta then approached § 87(2)(b) and gently nudged him on the arm with his hand in order to wake him up. He denied ever slapping the table or calling § 87(2)(b) a “stupid motherfucker.” He denied interacting with § 87(2)(b) at all outside of the store and said he never threatened to shoot § 87(2)(b). He denied attempting to unholster his gun and denied being restrained by other police officers.

PO Walker’s statement was generally consistent with PO Molfetta’s although he said that when he and PO Molfetta first approached § 87(2)(b) who was sleeping at a table, PO Molfetta lightly knocked on the table two times with his knuckles in order to wake § 87(2)(b) up, but PO Molfetta never slapped the table. He also denied hearing PO Molfetta call § 87(2)(b) a “stupid motherfucker” or tell him he was going to shoot him. He did not restrain PO Molfetta in order to stop him from unholstering his gun and did not witness any other officers take that action.

§ 87(2)(g)

It is therefore recommended that **Allegation A, Allegation B, and Allegation C** be **unsubstantiated**.

#### Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to twelve other CCRB complaints and has been named as a victim in 67 allegations (**Board Review 06**):
  - § 87(2)(b)
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- § 87(2)(b)
- [REDACTED]
- [REDACTED]
- [REDACTED]
- PO Molfetta has been a member-of-service for seven years and this is the first CCRB complaint to which he has been a subject.

## Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A request for any Notice of Claim regarding this incident has been submitted to the New York City Comptroller's Office, and the results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]

Squad No.: 10

Investigator: \_\_\_\_\_

Signature \_\_\_\_\_ Print Title & Name \_\_\_\_\_ Date \_\_\_\_\_

Squad Leader: \_\_\_\_\_

Signature \_\_\_\_\_ Print Title & Name \_\_\_\_\_ Date \_\_\_\_\_

Reviewer: \_\_\_\_\_

Signature \_\_\_\_\_ Print Title & Name \_\_\_\_\_ Date \_\_\_\_\_